IN THE INDUSTRIAL COURT OF MALAYSIA

NO. CASE : 21/4-878/23

BETWEEN

MAGESWARAN A/L S JAYARAMAN

AND

POSSEHL ELECTRONICS (MALAYSIA) SDN. BHD.

AWARD NO : 1895 OF 2025

Before	:	**YA SYED NOH BIN SAID NAZIR @ SYED NADZIR CHAIRMAN**
Venue	:	Industrial Court Malaysia, Kuala Lumpur
Date of Reference	:	16.05.2023.
Dates of Mention	:	03.07.2023, 21.08.2023, 06.09.2023, 04.10.2023, 20.10.2023, 08.11.2023, 28.07.2025, 02.09.2025.
Dates of Hearing	:	18.11.2024, 19.11.2024, 07.04.2025, 08.04.2025, 19.05.2025.
Representation	:	Dato' Sri M. Ramachelvam together with him, Ms. Nurul Syuhada binti Abdullah of Messrs Rama-Rozi & Associates Counsel for the Claimant Mr. Kee Tong Kiak together with him, Ms. Ang Jia Suen of Messrs Chee Siah Le Kee & Partners Counsel for the Respondent

AWARD

REFERENCE

[1] This is a reference by the Director General of Industrial Relations Malaysia under Section 20(3) of the Industrial Relations Act 1967 ("the Act") arising out of the dismissal of Mageswaran a/l S Jayaraman (hereinafter referred to as "the Claimant") by Possehl Electronics (Malaysia) Sdn. Bhd. (hereinafter referred to as "the Company") on 29.07.2022 for adjudication and an Award.

INTRODUCTION

[2] The Claimant started work with the Company on 16.03.2010 as a Senior Engineer with a salary of RM4,000 per month (see the Agreement of Employment at pp. 1-4 CLB1). Clause 19 of the Agreement of Employment (p. 3) stipulates that:

> *19. CODE OF CONDUCT*
>
> *You shall observe all the rules and regulations as laid down in the Employee's Handbook and any amendments made by the Company from time to time thereto."*

[3] The Company's Employee Handbook (pp. 3 - 35 COB1) provides for the rules and regulations, benefits and etc for the employees. It is undisputed that the claimant was aware of the existence of the Employee Handbook and that the Employee Handbook was referred to in the Agreement of Employment and that he had accepted its terms by signing the said Agreement (p. 155 Notes of Proceeding). Being bound by the provisions of the Employee Handbook is no issue.

BACKGROUND EVENTS

[4] The terms stated in the Agreement of Employment among others are:-

(a) The Claimant to commence his employment with the Company on 16.3.2010.
(b) The Claimant will be stationed at Plant 2.
(c) The Claimant will report to Mr. Jayabalan, Manager and/or any other persons as may be designated by the Company.
(d) The Claimant will be placed on probation for a period of three (3) months from the date of the commencement of employment.
(e) The Claimant's basic salary is RM4,000.00 per calendar month.

(f) The Notice period required from the Company and the Employee is one (1) month''s notice during the period of probation and upon confirmation is two (2) month's notice.

A copy of Agreement of Employment dated 05.02.2010 attached to the SOC marked as Appendix-1.

[5] The Claimant's employment was confirmed vide Letter of Confirmation dated 12.08.2010. See ***Letter of Confirmation dated 12.08.2010 attached to the SOC marked as Appendix-2*****.** The Claimant was paid RM6,836.00 as Basic Salary prior to the dismissal. Prior to the dismissal, the Claimant has been serving the Company without any discipline and/or attitude problems.

[6] Vide letter dated 18.5.2017, the Company had awarded the Claimant with "High Potential and Essential Employee" for year 2017/18. See ***Letter titled: High Potential & Essential Employee dated 18.5.2017 attached to the SOC marked as Appendix-2*****.**

[7] On 24.12.2020, the Claimant was designated to the plating and tooling department reporting to Mr Hoa Kim Huat, the Engineering Department Manager (hereinafter referred to as "Mr Hoa").

1st Warning Letter

[8] The Company issued the 1st Warning Letter vide letter dated 24.12.2021 to the Claimant stating inter alia as follows:-

(a) That the Human Resources Department received 2 Counselling forms dated 17.08.2021 from the Claimant's Immediate Superior.

(b) The counselling form contained alleged misconduct against the Claimant as follows:-

(i) The Claimant used unapproved drawings instead of finalized and control drawings of plating for quotation from Vendor.

(ii) The Claimant had bypassed superior cost, drawing, email and procedure.

(iii) The Claimant's action was considered as major misconduct or misconduct which is of a serious nature.

(c) The Claimant was reminded to adhere to all company's work procedures/work instruction at all time and to carry out superior's work order.

[9] Pursuant to the 1st Warning Letter; the Claimant was instructed to take immediate improvement action to ensure that no same or other similar incidents are repeated. ***See a copy of the 1st Warning Letter dated 24.12.2021 attached to the SOC marked as Appendix-5*.**

2nd Warning Letter

[10] The Company later issued a 2nd Warning Letter dated 19.05.2022 stating inter alia as follows:-

(a) The Human Resources Department received Counselling Form dated 11.05.2022 from the Claimant's immediate Superior regarding the Claimant's misconduct:-

> "Your Performance Appraisal Action Plan Report dated 12.04.2022 is referred. In the report, 5 actions plan were identified and shared to you as your performance improvement plan. The 1st review conducted on 18.05.2022 shows that you have failed to meet any of the actions identified."

(b) That the Claimant had committed a major misconduct and /or misconduct which is of a serious nature as follows:

> "Habitual - Non performance whether willful or through negligence and repeated failure to meet the established standard of production in quality and output."

(c) That the Claimant's commitment in the Action Plan Report Form will be continue monitored closely and that the Claimant was reminded to ensure that the Claimant achieved all the items stated in the Action Plan Report Form.

(d) That in the event that the Claimant failed to achieve his Performance Improvement Plan (PIP); the Company will take disciplinary action including termination or dismissal.

See a copy of 2nd Warning Letter dated 19.5.2022 attached to the SOC and marked as Appendix-6

Show Cause Letter Dated 10.06.2022

[11] Vide letter dated 10.06.2022; the Company issued a Show Cause Letter to the Claimant claiming that the Claimant had committed misconducts as follows:-

(1) Habitual not being punctual in submitting report as instructed by the Head of Department, Mr. Hoa Kim Huat. The reports are as follows:-

(a) Drawings not completed on agreed timeline which is 26th May 2022 which is in fact the extended date from 26th April 2022. Number of drawings 26.

(b) Moulding jig #87082 for part number 446135 buy off report submitted on 25th May 2022 with recycle paper which is forbidden based IATF requirements. This is despite 4 rounds of extensions.

(2) Willful disobedience to any lawful and reasonable order of your superior. No improvement on commitments in PIP in spite of many extensions given by the Head of

Department, Mr. Hoa Kim Huat and Operation Director, Mr. Vincent Kang.

(3) Wilful disobedience to any lawful and reasonable order of your Head of Department, Mr. Hoa Kim Huat. You did not show and initiative or commitment to learn up MECO Plating Line as agreed in PIP Item 5.

(4) The above issues are of major problems but you consider that these are minor problems. Clearly you do not understand the seriousness of these issues as we need make sure that all our parts and products must confirmed with the IATF 16949 requirements.

[12] Pursuant to the Show Cause Letter; the Claimant was suspended from 10.6.2022 to 13.6.2022 with half pay. ***See a copy of Show Cause Letter dated 10.6.2022 attached to the SOC marked as Appendix-7.***

The Claimant's Reply To The Show Cause

[13] The Claimant replied to the show cause letter vide letter dated 14.06.2022 stating among other that:-

(a) The Claimant had completed the drawings as scheduled.

(b) The allegation of non-completion of work was because the Claimant did not add nozzles in bottom plate

drawing. There is no requirement to add nozzles in bottom plate drawing.

(c) The Claimant had accidentally printed one of the pages in the Report using recycled paper. The Claimant had reprinted the relevant page once alerted and resubmitted immediately the report for approval.

(d) The 4th round extension was not due to the report but due to longer period to receive moulding jig from vendor. The report can only be produced after receiving the moulding jig.

(e) The Claimant had submitted daily report to show progress of work. Based on the reports, there are improvement in commitment in PIP.

(f) The Claimant had taken the initiative to learn MECO Plating Line and the progress is still continuing.

(g) That the Claimant was serious in improving himself and accomplishing the tasks given.

A copy of Answer to Chow Cause Letter dated 14.06.2022 is attached hereto and marked as Appendix-8.

Extension Of Suspension Period

[14] The Company issued a letter dated 14.06.2022 extending the suspension period from 14.06.2022 to 16.06.2022. ***See a Copy of Letter dated 14.06.2022 attached to the SOC marked as Appendix-9.***

Further Answer To The Show Cause Letter

[15] The Claimant had also issued a further answer to the Show Cause Letter vide letter dated 16.6.2022 stating among others as follows:-

(a) The Claimant had been serving as Senior Engineer in Engineering Department for the last 12 years.

(b) The Claimant had been working under 3 different Managers previously in the same department without any problem.

(c) The Manager Mr. Hoa Kim Huat has been pressuring the Claimant to resign from the Company since October 2021.

See a copy of Letter dated 16.6.2022 attached to the SOC marked as Appendix- 10.

Domestic Inquiry

[16] The Domestic Inquiry was held on the 13.07.2022. During the Inquiry the Claimant defended himself and denied the alleged misconduct against him. The Claimant further states that the Domestic Inquiry was not held fairly; was not in accordance with fundamental rules of natural justice; did not afford the Claimant an adequate and reasonable opportunity to defend himself.

Letter of Dismissal

[17] Pursuant to a letter dated 29.07.2022; the Claimant was dismissed from employment from 29.07.2022. The Claimant denies and challenges the finding that he is guilty of major misconducts.

[18] Therefore, the issue before this Court is whether the termination of the Claimant's services on the grounds of poor performance was with just cause or excuse.

COMPANY'S POSITION

The drawings of Mitomo plating tools not completed on agreed timeline i.e. 26.05.2022 and did not follow the format and were full of mistakes

[19] The Claimant had sent some drawings to Phu Jak Kie. Vide an email dated 22.04.2022 (p. 46 COB1), Phu then forwarded the drawings to COW2. Subsequently, vide email dated 25.04.2022 (pp. 45-46 COB1), COW2 instructed the Claimant to resend him the drawings once the Claimant was back to work as there were many mistakes on the format.

Incomplete drawings without nozzles being drawn

[20] In his reply dated 14.06.2022 (p. 15 CLB1) to the show cause letter, the Claimant asserted that there were no procedure requiring him to include nozzles in his drawings. At the DI held on 13.07.2022 (see in particular, p. 231 COB1), the Claimant stated that it is not a requirement to draw the nozzles even when there is one in the physical tool. The company submits that the Claimant had indeed drawn the nozzles in his drawings before this incident. See his emails dated 27.12.2021 and 28.12.2021 (p. 88 COB1) where he informed COW2 that he had drawn the nozzles. The company avers that since nozzles were drawn previously, it becomes incumbent for the continuous drawings of the nozzle.

Old drawings that were not updated

[21] There were old drawings (pp. 48, 104, 106-114, 120 and 121 COB2) which the Claimant allegedly failed to update and remained outdated as they had not been cross- checked against the physical tools to verify their accuracy or applicability. Furthermore, these drawings were neither checked by Phu Jak Kie nor approved by COW2.

Incomplete drawings with comments of COW2 not attended to

[22] There were several drawings (pp. 17, 19 & 27 COB1) which remained incomplete as the Claimant failed to rectify or amend them in accordance with the comments written by COW2.

2nd misconduct: Molding jig buy off report printed on recycled paper

[23] The Claimant was asked to prepare a molding jig buy-off report. The molding jig was received on 20.05.2022 and this was acknowledged by the Claimant (p. 192 Notes of Proceeding).

***3rd* misconduct: No improvement on commitment in PIP despite many extensions**

[24] COW2 was not happy with the performance of the Claimant. The counselling form dated 17.08.2021 (pp. 202 COB1) showed that COW2 counselled the Claimant on the following misconducts:

a) Used unapproved drawings;
b) Use photo of other vendor tool design;
c) As a result of using unapproved drawings, quotation
d) Own approval of own drawn drawings.

[25] The counselling form dated 17.08.2021 (p. 203 COB1) showed that COW2 counselled the Claimant on the misconduct of wilful insubordination or disobedience and was reminded not to bypass superior on cost, drawing, email and procedure.

PIP review

[26] On 12.04.2022, COW2 reviewed the action plan with the Claimant and found that the Claimant had not met the action plan set for him (see the Action Plan Report at p. 53 COB1).

Punctuality in submission of daily reports and quality of the reports

[27] Upon being instructed vide email dated 15.03.2025 (p. 170 COB1) by COW2, the Claimant sent the daily and quality report on 16.03.2025 but then stopped sending on subsequent days.

[28] Vide email dated 29.03.2021 (p. 170 COB1), COW2 sent a final reminder to the Claimant that he had not submitted the daily reports since 16.03.2021 and reminded him to send, highlighting that **"Please take this seriously."** Initially, the Claimant alleged

that COW2 had verbally informed him that there was no need to submit the reports. However, the Claimant later admitted that this was merely an excuse and an afterthought, as there was no evidence to support his claim.

4th misconduct: No initiative or commitment to learn up Meco plating line

[29] At the performance appraisal conducted on 21.05.2019, COW2 concluded that the Claimant required an overall improvement plan for tooling plating (see Performance Appraisal Form at pp. 206-207 COB1). After the Claimant reported directly to COW2, COW2 concluded that he needed to learn the tooling set up for both Meco and Mitomo lines and as such asked him to do so in December 2020. In the 1st PIP review on **11.05.2022,** his answer was **"not started"** (pp. 204-205 COB1). In the 2nd PIP review on **09.06.2022,** his answer was **"in progress"** (p. 198 COB1). In his reply dated 14.06.2022 to the show cause letter, he stated that "the learning of Meco is line is in progress" (p. 15 CLB1).

[30] It is averred that the claimant made no progress of learning from the time COW2 asked him to learn the set-up of Meco plating line in December 2020 and despite reminders on 18.08.2021 and the two PIP reviews in 2022, the Claimant had not started by 12.04.2022 and by 14.06.2022.

[31] The Company concluded that it has proven that the dismissal is with just cause and excuse. Alternatively, if this Court holds that the dismissal is unfair, there should be deduction for failure to mitigate loss and contributory misconduct.

CAUSE PAPERS, WITNESS STATEMENTS (together with a brief introduction of the witness) AND OTHER DOCUMENTS

[32] This Court had considered the following documents that had been filed for the purpose of hearing before this Court as follows:

a) Cause Papers

(i) Statement of Case dated 24.07.2023.

(ii) Statement in Reply dated 29.08.2023.

(iii) Rejoinder dated 18.11.2024.

(b) Witness Statements and brief description of Witnesses Produced during Trial

(iv) Witness Statement of COW-1 – **Tay Lee**

Fong – Human Resources Manager of the Company marked as “COWS-1”.

(v) Witness Statement of COW-2 – **Hoa Kim Huat** – Operation Senior Manager for Plating & BackEnd Department of the Company, “COWS-2”.

(vi) Witness Statement of **Mageswaran a/l S Jayaraman** i.e. the Claimant marked as “CLWS-1” and for the purpose of this award, referred to as “the claimant” or “CLW-1”.

(c) Bundles of Documents

(vii) The Company’s Bundle of Documents dated 29.08.2023 marked as “COB-1”.

(viii) The Company’s Supplemental Bundle of Documents dated 30.08.2024 marked as “COB-2”.

(ix) The Company’s Supplemental Bundle of Documents (2) dated 16.10.2024 marked as “COB-3”.

(x) Claimant’s Bundle of Documents dated 13.11.2024 marked as “CLB-1”.

(xi) *Pengesahan Penerimaan e-BE Bagi Tahun Taksiran 2022* marked as “CLB-2A”.

(xii) *Pengesahan Penerimaan e-BE Bagi Tahun Taksiran 2023* marked as “CLB-2B”.

(xiii) *Cukai Pendapatan – Penyata Saraan daripada Penggajian Bagi Tahun Berakhir 31 Disember 2022* marked as “CLB-2C”.

(xiv) Letter No-Filing Service for Year of Assessment 2025 (for income earned in year 2024) marked as “CLB-3”.

(d) Written Submissions

(xv) The Company’s Submission dated 20.08.2025.

(xvi) The Company’s Submission In Reply dated 04.09.2025.

(xvii) Claimant’s Written Submission dated 18.08.2025.

(xviii) Claimant’s Submissions In Reply dated 12.09.2025.

THE APPLICABLE LAW, BURDEN AND STANDARD OF PROOF

[33] The role of the Industrial Court was lucidly explained by His Lordship Raja Azlan Shah CJ (Malaya) (as His Royal Highness then was) in **Goon Kwee Phoy v. J & P Coats (M) Bhd [1981] 1 LNS 30; [1981] 1 MLJ 129** (Federal Court) as follows:

> *“Where representations are made and are referred to the Industrial Court for enquiry, it is the duty of the Court to determine whether the termination or dismissal is with or without just cause or excuse. If the employer chooses to give a reason or excuse for the action taken by him, the duty of the Industrial Court will be to enquire whether that reason or*

excuse has or has not been made out. If it finds as a fact that it has not been proven, then the inevitable conclusion must be that the termination or dismissal was without just cause or excuse. The proper enquiry of the Court is the reason advanced by the employer, and that Court or the High Court cannot go into another reason not relied on by the employer, or find one for him".

[34] The burden of proving that the employee is guilty of the allegation of misconduct or negligence as the case may be and establishing the reasons for dismissal rests squarely upon the employer. This was aptly stated by the Learned Industrial Court Chairman in **Stamford Executive Centre v. Puan Dharsini Ganesan [1986] 1 ILR 101** as follows:

> *"16. It may further be emphasised here that in a dismissal case the employer must produce convincing evidence that the workman committed the offence or offences the workman is alleged to have committed for which he has been dismissed. The burden of proof lies on the employer. He must prove the workman guilty, and it is not the workman who must prove himself not guilty. This is so basic a principle of industrial jurisprudence that no employer is expected to come to this Court in ignorance of it."*

STANDARD OF PROOF

[35] The standard of proof applicable to dismissal cases is the civil standard of proof on a balance of probabilities as decided by the Court of Appeal in **Telekom Malaysia Kawasan Utara v. Krishnan Kutty Sanguni Nair & Anor. [2002] 3 CLJ 314** as follows:

> *"Thus, we can see that the preponderant view is that the Industrial Court, when hearing a claim of unjust dismissal, even where the ground is one of dishonest act, including "theft", is not required to be satisfied beyond reasonable doubt that the employee has "committed the offence", as in a criminal prosecution… In our view the passage quoted from Administrative Law by H. W. R. Wade & C.F. Forsyth offers the clearest statement on the standard of proof required, that is the civil standard based on balance of probabilities, which is flexible, so that the degree of probability required is proportionate to the nature and gravity of the issue."*

LAW ON POOR PERFORMANCE

[36] Hence, the onus is on the Company to prove that it had dismissed the Claimant with just cause and excuse on the basis of the Claimant's poor performance whilst in employment with the Company. It ought to be made out that the Claimant's poor

performance relates to the deficiencies in his work or standard of work, and involves inefficiency, incompetence or plain inaptitude.

[37] **"Inefficiency”**, **“incompetency”**, or **“incapability"** means the workman is found to be incapable of performing the work which he was employed to do, or incapable of performing the basic work functions as required by the employer. Poor performance may possibly bring about another aspect of ground for dismissal. Although not misconduct per se, it had been held that poor performance is an acceptable basis for an employer to dismiss an employee with just cause and excuse. In this regard, it was held in **Khor Eng Khye V. Guiness Anchor Marketing Sdn Bhd [2006] 2 LNS 178442 (supra)** that:

> *“Although the Industrial Court has held that poor performance is not misconduct per se, it is trite law that poor performance affords an acceptable basis for an employer to establish that the dismissal is with just cause or excuse under section 20 of Industrial Relations Act 1967. The reason for this is that inefficiency or in competence resulting in failure to perform the duties of the service destroys the whole reality of the contract from the point of view of the employer. The vast majority of the employees make their employers the judges of their competence. Hence, so long as the employer acts bona fide ie if he is genuinely discontented with an employee, he is quite*

entitled to dismiss the employee. (see Samsudin Amin v. Austral Enterprises Bhd Award 47 of 1974).”

[38] This court is well minded of the principle that the Company need not prove that the Claimant was in fact incapable or incompetent but is sufficient enough if the Company honestly believes on reasonable grounds that the Claimant is incapable or incompetent. This was held by the Industrial Court in the case of **Choong Poh Ling v CIMB Aviva Assurance Berhad [2016] 2 LNS 1032** quoting Lord Denning MR in the case of **Alidair LTD v Taylor [1978] LCR 445** which was cited in **Saw David Thien v BASF (Malaysia) Sdn Bhd [2020] 2 LNS 07174 (David Thien (supra) and Khor Eng (supra)**, respectively, as follows:

“whenever a man is dismissed for incapacity or incompetence it is sufficient that the employer honestly believes on reasonable grounds that the man is incapable or incompetent. It is not necessary for the employer to prove that he is in fact incapable or incompetent.”

[39] Reasonable grounds can be surmised from the following extract from **Ian Smith and Aaron Baker, Smith and Woods Employment Law, 10th edn (2010, Oxford University Press), p 461** referred to in the case of **Azman Zanoo v Firefly Sdn. Bhd. (Award No. 956**

of 2015), which sums up the position in this regard:

> *"...The question for the tribunal is whether the employer has satisfied them that he genuinely believed on reasonable grounds that the employee was incapable. The requirement of reasonable grounds means that the employer should make a proper and full investigation into the facts of the case and give careful consideration to the decision to dismiss; amongst other things, this consideration may include as a factor whether the employee was given proper training for the job, adequate supervision, and where appropriate proper support from the employer. Also, it is well established that this area is amenable to the application of a warning procedure, although the emphasis may be different from that in misconduct cases, for here the constructive side of a warning may be more important, not only pointing out the employer's ground of complaint, but also instructing the employee how to improve and giving her reasonable time in which to do so. Of course, warnings are not essential in every case, and may perhaps be irrelevant where it is clear that the employee is completely incapable of improvement or where she already clearly knows what is expected of her.* ***That apart, however, the importance of a fair procedure in this area should not be understated, and the lack of it [particularly if it leads to inadequate investigation by the employer] may make the dismissal of an incompetent employee unfair...".***

[40] The test to be applied in assessing if the Company has dismissed the Claimant with just cause and excuse on the basis that the

Claimant was a poor performer is succinctly laid out in the case of **Ireka Construction Berhad v Chantiravathan all Subramaniam James [1995] 2 ILR 1146 (Ireka (supra)** which held as follows:

> *"The only issue for this Court to determine now is whether the Company, on a balance of probabilities has established the poor performance of the Claimant. As far as unsatisfactory performance is concerned the Industrial Court has laid down that in order to justify the dismissal of the Claimant on this ground, the Company has to establish:*
>
> *i) that the Claimant was warned about his poor performance;*
>
> *ii) that the Claimant was accorded sufficient opportunity to improve; and*
>
> *iii) that notwithstanding the above, the Claimant failed to sufficiently improve his performance.*
>
> *In the case of* ***Rooftech Sdn. Bhd. v. Holiday Inn, Penang, Award No. 166/86****, the Court stated:*
>
> > *"Inefficiency which discloses a course of negative conduct, no doubt is a sufficient ground for termination but there must necessarily be sufficient proof that a procedure has been followed. Ordinarily there must be sufficient written communications to the Claimant in order to establish inefficiency or poor performance before the Company can rely on it to justify dismissal. The Company has failed to do so."*

[41] Nevertheless it must also be reminded that targets set for the employee who is performing poorly cannot be unrealistic or grossly harsh and must be in line with documentary proof **[See Cisco (M) Sdn Bhd v Raja Mohan PV Nathan [2003] 3 ILR 40 (supra)]**, affirmed by the High Court and Court of Appeal.

ISSUES

[42] Bearing in mind the principles laid down in the above authorities, in particular the 3 tests enunciated in **Ireka Construction Berhad v Chantiravathan a/l Subramaniam James [1995] 2 ILR 1146 (supra)**, this court however is of the considered views that in order to arrive at an equitable and conscienable decision as required of by Section 30(5) of the Act, the fundamental issues to be determined by this Court in this case are as follows:

i. whether the company had successfully proved the Claimant's poor performance;
ii. whether the Company had oppressed and victimised the Claimant;
iii. whether the PIP was designed to fail the Claimant.

EVALUATION OF EVIDENCE AND FINDINGS

CHARGES AGAINST THE CLAIMANT

1st CHARGE

Habitual Not Being Punctual In Submitting Report As Per Instructed

[43] The first charge against the Claimant was in respect of submitting the 2 reports namely:

(a) Drawings of the 26 tools; and

(b) Molding jig #37082 for part number 446135 buy off report.

[44] Failure to complete the Drawings of 26 tools In his evidence, the Claimant explained as follows:

(a) That the number of drawings that he need to draw was 130 drawings.

(b) He needed to refer to the old drawings and re-draw the drawings into the Auto-Cad System. He had completed the drawings in the Auto-Cad system.

(c) He was unable print the drawings for approval by the Head of Department as he was ordered to stop printing and not to touch his computer when he wanted to print the drawings.

[45] On the issue of nozzle, the Claimant explained as follows:

a. Based on the previous method, the nozzle was drawn separately.
b. When he had completed drawing the tools, he was then informed by Mr. Hoa that his drawings were incomplete as some of the drawings where the tools have nozzle but the nozzle was not drawn.
c. He started to redo the drawings and had drawn the nozzle.

[46] On the allegation that the Claimant was unable to complete the drawings within time stipulated, the Claimant had explained that whilst working on the drawings, he also had to attend to his current work and due to the workload, he was not able to complete the drawings within time. The claimant went on to submit that based on the evidence presented before the Court, he had commenced drawing the 26 tools as ordered by his superior and has completed the drawings in the Auto Cad System.

Moulding Jig #87082 for Part No. 446135 Buy Off Report

[47] With regard to the issue of buy off report, the buy off report was submitted by the Claimant on the 25.5.2022 (page 3 of COB3). The Claimant in his evidence explained that the reason for delay was

because the supplier from Hong Kong took time in sending the molding jig which resulted in the delay in preparing the buy off report. The Claimant had explained that the jig was only received from the Hong Kong Supplier on the 20.5.2025. Upon receiving the molding jig from the supplier, the jig needs to be run first then the molding report could be prepared. The Claimant in his evidence had denied Mr. Hoa Kim Huat's contention that the molding jig buy off report could be done within one day. It was further explained that the 4 rounds of extensions as alleged by the Company in respect to the delay in submitting the buy off report was not due to the Claimant but due to external factors i.e. as stated above, the delay from receiving the molding jig from the supplier.

Issue of Report submitted using the recycled paper

[48] Another issue in respect of the Buy Off report was the issue of using recycled paper which was forbidden by the IATF Requirements. The evidence before the Court disclosed that upon being notified by Mr. Hoa that the Claimant had inadvertently print the report using recycled paper, the Claimant had then reprinted and resubmit the report to Mr. Hoa. Mr. Hoa (COW2) in his evidence confirmed that

the mistake of using the recycled paper had been rectified by the Claimant.

2ND. CHARGE

Wilful Disobedience To Any Lawful And Order Of The Superior

[49] The second charge against the Claimant was that the Claimant had wilfully disobeyed the lawful and reasonable order of his superior in the following instances:

a. No improvement on commitments in PIP in spite of many extensions given by the Head of Department and the Operation Director; and
b. No initiative or commitment to learn Meco Plating Line as agreed in PIP Item 5.

Whether the Claimant has improved on Commitment in Performance Improvement Plan (PIP)

[50] The Claimant in his evidence stated that:

a. He had submitted daily reports on the PIP to show the progress
b. There is improvement in the items committed in the PIP.

[51] The Claimant's evidence was supported by **COW1 (TAY LEE FONG)** when she agreed that the Claimant had made improvement although the improvement was not enough. During the Domestic Inquiry, the Claimant had given his explanation as per pages 230 — 275 of the COB1. His explanation on the issue of improvement on commitment in PIP among others are:

a. Claimant denied the allegation of wilful disobedient as he followed all instructions from his Superior
b. At page 265 of the CLB1 — Claimant had explained that he had made improvement on the commitment in PIP. He had submitted daily reports to show the progress of work.

[52] Documents at pages 54 — 178 of the COB1 i.e. the emails from the Claimant to his Superior, Mr, Hoa Kim Huat - clearly support the Claimant's explanation that he had made improvement on the task assigned to him and on the commitment in the PIP.

[53] This is supported by COW1 (TAY LEE FONG) in her evidence during cross examination which confirmed that the Claimant had made improvement. As such, this court found that the impugned allegation that the Claimant had made no improvement on the commitment in the PIP is unfounded, unsubstantiated and not

supported by evidence. It is also unsupported in evidence that the Claimant had wilfully disobeyed to follow lawful and reasonable orders of his superior.

Learning Meco Plating Line

[54] The Claimant had been charged for wilful disobedience when he failed to show initiative or commitment to learn Meco Plating Line as stated in Item 5 of the PIP. This allegation was challenged by the Claimant; in that in his evidence he explained that:

a. The process of learning of Meco Plating Line was in progress.
b. All In along he was assigned to and used to Mitomo Plating Line.
c. In 2020, the Claimant was instructed by his Superior Mr. Hoa Kim Huat to learn Meco Plating Line.
d. He had no experience in operating the Meco Plating Line. He had been Plating Line.
e. He had been learning on his own on the operation of the Meco Plating Line.
f. The Company had not provided official training for him to learn Meco Plating Line.
g. The Claimant had informed Mr. Hoa Kim Huat that the learning of Meco Plating Line was in progress.

h. The Claimant had taken initiative to learn Meco Plating Line.

[55] COW2 (Hoa Kim Huat) in his evidence has confirmed that the Claimant had informed him that the Claimant had taken initiative to learn Meco Plating Line and that the learning was in progress. COW2 (Hoa Kim Huat) also confirmed in his evidence that the Claimant did not refuse to learn Meco Plating Line when the Claimant was instructed to learn Meco Plating Line.

[56] The evidence before the Court disclosed:

a. That the Claimant had taken the initiative to learn Meco Plating Line;
b. That the learning of Meco Plating Line was in progress. That the Claimant had taken time to learn the Meco Plating Line due to the fact that he was inexperienced in operating Meco Plating Line and the fact that the Company did not provide official training for him.
c. That the Claimant did not disobey his superior's order in learning the Meco Plating Line.

[57] In the above evidence, this court found that the Company's allegation that the Claimant had wilfully disobeyed the legal and reasonable order of his superior is an exaggeration. This court

further found that the allegation that the Claimant did not take any initiative or commitment to learn Meco Plating Line is not well supported.

Whether Misconduct by The Claimant Proven

[58] It has not been proved by the company to this court's satisfaction that the Claimant's dismissal was with just cause or excuse. There was no convincing evidence tendered by the Company to prove the charges of misconduct against the Claimant. In **Ahmad Fadzrul Misrah v Brahim's Sats Food Services Sdn Bhd [2024] ILRU 1708**, the Court held that:

> ***"Burden Of Proof***
>
> *[20]* ***Whenever a Company has caused the dismissal of the workman, it is then incumbent on part of the Company to discharge the burden of proof that the dismissal was with just cause or excuse.*** *This Court will now refer to the case of Ireka Construction Berhad v. Chantiravathan a/l Subramaniam James [1995] 2 ILR 11 in which case it was stated that:*
>
> > ***"It is a basic principle of industrial jurisprudence that in a dismissal case the employer must produce convincing evidence that the workman committed the offence or offences the workman is alleged to have***

committed for which he has been dismissed. The burden of proof lies on the employer to prove that he has just cause and excuse for taking the decision to impose the disciplinary measure of dismissal upon the employee. *The just cause must be, either a misconduct, negligence or poor performance based on the facts of the case."*

DOMESTIC INQUIRY

[59] The Claimant submits that the Domestic Inquiry conducted by the Company was flawed and that the findings of the Domestic Inquiry were erroneous based on the following grounds:

a. The issues deliberated during the domestic inquiry were not part of the Show Cause Notice dated 10.6.2022; The

b. The findings of the Inquiry Panel were made based on the fact that Claimant had accepted the contents of the allegation in the Warning Letters dated 24.12.2021 and 19.5.2021; by virtue of signing the Acceptance of the said letters.

c. No evidence of wilful disobedience or insubordination and non- performance of duty was tendered by the Company during the Domestic Inquiry.

Matters not part of the Show Cause Notice dated 10.6.2022

[60] This can be seen at **page 224 of the COB1** where the Prosecuting Officer (COW1) had referred to incidents that occurred on the 12.04.2021 and 14.12.2021 as stated as follows:

> *(PO handed over the invitation print out for Action Plan Report 2nd. Review)*
> *Prior to the 12 April 2022 Action Plan and 2nd. Warning Letter dated 19 May 2022, the accused was issued Action Plan dated 19 May 2021. Due to 60% work force restriction during the pandemic last year, review was not able to be followed through and this actually indirectly given the Accused more time to focus in his area for improvement. When the government lifted the 60% work force restriction in September 2021, Mr Hoa continue to monitor the progress of the Accused. However, the Accused still unable to show significant improvement and counselling sessions conducted with Warning Letter was issued on 24.12.2021 for the same misconduct; habitual non- performance of duty.*

[61] **COW1 in her evidence also confirmed** that the matters stated at page 224 of the COB1 were not part of the Show Cause Notice dated 10.06.2022. During the hearing before this court, the Company had also made reference to the issue of the Claimant's failure to revert on the Temporary Document Change Notice

(TDCN) and it took him numerous reminders to give his response on the TDCN issue.

[62] However, it is pertinent to note that the issue pertaining to the failure to response to the TDCN issue was not part of the Show Cause Notice and as such irrelevant to the charge. **COW2 in his evidence confirmed** that the issue pertaining to TDCN was not part of the Show Cause Letter and the Domestic Inquiry. In this respect, this court follows **Aziz Yaakob v. Bank Muamalat Malaysia Bhd [2005] 3 ILR 502** wherein the Industrial Court held that the matters and/or issues which are not part of the charge should not be considered by the Court.

Whether there is Evidence of Wilful Disobedience or Insubordination

[63] In the instant case; the Claimant's employment with the Company was terminated due to non-performance of duty and disobedience **[please refer to the Decision of the Panel of Inquiry at page 278 of the COB1]**

[64] On issue of disobedience; COW1 in her evidence during the Cross Examination had confirmed as follows:

a. That the Claimant had given his explanation on each and every charge made against him;
b. That the Claimant's explanation can be seen in his evidence during Domestic Inquiry at pages 230 — 275 of the COB1.
c. **The Claimant did not on purpose refuse to carry out the orders of Superiors**.

[65] On the issue of non-performance of duty; the evidence before the court are as follows:

a. The Claimant had drawn the tools in the Autocad; however he was not able to print the drawings.
b. Some of the tools had no nozzle and some had nozzles. Initially the nozzles were drawn separately from the tools. Therefore, initially he did not draw the nozzles. However upon being informed that he needed to draw as per the physical tools, he had redone the drawings and drawn the nozzles as well.
c. He had submitted daily reports to his Superior Mr. Hoa Kim Huat. However there were delays in submitting the daily reports. This was confirmed by COW2 in his evidence during Cross Examination.
d. On the issue that the Claimant printed a report on the recycled paper; the issue had been rectified immediately by the Claimant upon being informed by his Superior.

[66] Hence, this court is of the opinion that the findings of the Inquiry Panel that the Claimant was guilty of non-performance of duty and disobedience was unfounded and unjustified.

Whether the basis of the Panel's Findings was tainted with irrelevant factor

[67] At page 278 of the COB1; the Panel findings are as follow:

> *"Based on 1st. Warning Letter dated 24.12.2021 and the 2nd. Warning Letter dated 19.5.2022, it stated clearly of "Habitual — Non-performance of duty" which the accused fully understood and accepted the content of allegation with his signature"*

[68] The claimant submitted that the Inquiry Panel's findings of guilt was made based on that since the Claimant had merely signed the 1st. Warning Letter and the 2nd. Warning Letter, the claimant was taken to having admitted to the charges. Without further elaboration on how the finding was arriving at, this finding does not hold water, clearly without merit and contrary to the principle of natural justice.

PRESSURE FROM THE SUPERIOR TO RESIGN

[69] It is the claimant's pleading in his Statement of Case and evidence was adduced to support his assertion that he was pressured by his Superior Mr. Hoa Kim Huat to resign from the Company. At page 201 of the COB1; the Company had vide letter dated 06.07.2022 admitted that Mr. Hoa Kim Huat had discussed with the Claimant and requested the Claimant to resign from the Company. The letter stated inter - alia as follow:

> *"Further, seeing that you have committed major misconduct and in order to avoid disciplinary action being taken against you,* ***he had discussed with you, on a friendly basis, other ways to resolve the matter including the possibility of you resigning from the company.*** *However, as you are not agreeable, he left the matter as it is."*

[70] COW1 when asked about the issue of pressuring the Claimant's to resign stated as follow:

> ***Q: Tab J CLB1. This is the 2nd. explanation letter dated 16.6.2024. At paragraph 4 of the letter the Claimant stated that "Mr. Hoa recently pressuring me to resign. This is what he said.***
>
> ***A: Yes***

Q: The Company actually admitted that Mr. Hoa did ask him to resign. Agree?

A: No.

Q: Look at COB1 page 210. This is a letter from your Company dated 6.7.2022 at paragraph 3. Your Company agrees that Mr. Hoa had requested him to resign.

A: From here I understand that he discussed with him to resign. But I don't know if he pressured him.

Q: Do you agree that before the Notice to Show Cause was issued, Mr. Hoa had discussed with the Claimant on resigning?

A: Yes.

[71] When COW2 was asked during cross-examination about the issue of him pressuring the Claimant to resign, COW2 conceded as follows:

Q: You discussed with him and you told him to resign.

A: <u>What this mean is if he resigned the problem is solved ...</u>

[72] Clearly, there was no denial by COW2 in his evidence that he had **told the claimant to resign**, and this may reasonably be understood as a subordinate being pressured by his superior to

resign. As such, there is reason to believe that the Company had already decided to terminate the Claimant's employment prior to the Domestic Inquiry being conducted.

SUMMARY AND CONCLUSION

Whether Drawings of Mitomo Plating Tools not completed

[73] In conclusion, this court emphasized that on the impugned issues of the Claimant has failed to complete the drawings of Mitomo Plating tools within the timeframe; it was never satisfactorily challenged that the delay was due to that whilst working on the drawings, the claimant also had to attend to his current work and due to the workload, he was not able to complete the drawings within time. It was also unrefuted that the claimant had commenced drawing the 26 tools as ordered by his superior and had eventually completed the drawings in the Auto Cad System.

[74] With regards to the issue of the nozzle drawings, the Claimant's evidence must not be entirely dismissed; that it was an issue of misunderstanding of the instruction given to him. The miscommunication and Claimant in his evidence had explained that all along; it was the practice that the nozzle was drawn in a separate

drawing as the nozzle was made separately and the nozzle will be assembled together with the tools upon fabrication. As such, this court agrees that the claimant has sufficiently explained the reason why he did not draw the nozzle in the first draft.

[75] Upon being highlighted on the issue of nozzle drawings by COW2; the claimant had made the necessary amendments to the drawings and had incorporated the nozzle drawings. This court agrees that such errors should not warrant any dismissal. The dismissal of the Claimant's employment merely on the issue of incomplete drawings was disproportionate to the "alleged misconduct" and it reflects the Company's bad faith conduct in terminating the Claimant.

[76] In the considered views of this court, the company disproportionately equates *poor performance* - the issue of incomplete drawings with *misconduct* that are distinctively dissimilar. Such equation is unwarranted and unbecoming to occur on a senior employee; and prejudicial against the claimant.

Issue of 2nd. Misconduct: Buy Off Report using Recycled Paper

[77] The Company has relied on a hypothetical situation that if the mistake was not detected and was found during audit; it would lead to serious repercussion to the Company and that the Company could have suffered financial loss. However, such a hypothetical situation did not occur and hence financial loss was never proven. No explanation was given by any of the company's witnesses as to how financial losses would have been suffered if the mistake was only detected.

[78] What transpired was that the mistake was brought to the Claimant's attention by COW2 and the mistake was corrected immediately by the Claimant. To dismiss the Claimant's employment based on a hypothetical situation is clearly unjustified and plainly wrong.

Improvement on commitment in the PIP

[79] The issues raised in the PIP and the Counselling were that the Claimant had made no improvement on commitment in the PIP despite numerous Counselling conducted. The following issues were raised:

a. Drawings of the Mitomo plating tools;
b. Punctuality in the daily report;
c. Completion of tasks within the given timeline;
d. Email to external parties must be reviewed; and
e. Learning MITOMO and MECO

[80] For the above incompetency, the charge levelled against the Claimant in this respect was that the Claimant had wilfully disobeyed the lawful and reasonable order of his superior. The company concluded that the claimant has wilfully disobeyed the lawful and reasonable order of his superior.

[81] However, this court is not satisfied that ample evidence has been tendered by the company in support of its contention that the claimant had wilfully disobeyed his superior and committed insubordination. The mere fact that the Claimant had signed the comment made by his superior COW2 during the counselling and/or review only meant that the Claimant had acknowledged that there was room for improvement on the matters enumerated in the PIP.

[82] It is clear to this court that the PIP process initiated by the company supposedly in order for the claimant to improve, had merely served as an instrument to drive the claimant out of the company, reflective

of *mala fide,* oppression and ulterior motive. This court relies on the case of **Azman Zanoo V_Firefly Sdn Bhd [2015] ILRU 0956** where **Smith and Woods Employment Law 10th. Edition** was referred and adopted *inter alia* as follows:

> ***"The question for the tribunal is whether the employer has satisfied them that she genuinely believed on reasonable grounds that the employee was incapable. The requirement of reasonable grounds means that investigation the into employer should make a proper and full the facts of the case, and give careful consideration to the decision to dismiss; (See Cook v. Thomas Linnell & Sons Ltd. [1977] ICR 770, [1977] IRLR 132) amongst other things, this consideration may include as a factor whether the employee was given proper training for the job, adequate supervision and, where appropriate, proper support from the employer. Also, it is well established that this area is amenable to the application of a warnings procedure, though the emphasis may be different from that in misconduct cases, for here the constructive side of a warning may be more important, not only pointing out instructing the employer's ground for complaint but also employee how to improve and giving her reasonable time in which to do so. Of course, warnings are not essential in every case, and may perhaps be irrelevant where it is clear that the employee is completely incapable of improvement or where she clearly knows what is expected of her. That apart, however, the importance of a***

fair procedure in this area should not be underestimated, and lack of it (particularly if it leads to inadequate investigation by the employer) may make dismissal of an incompetent employee unfair (though it may still be open to the employer to argue that there should be little or no compensation where there was wilful default on the part of the employee, such as failure or refusal to improve).”

[emphasis added]

[83] It is on evidence during cross-examination on 07.04.2025 of COW-2 when it was put to the witness that MECO was new to the claimant and despite that, no training was provided.

[84] Moreover, it is much left to be seen why the claimant who was regarded as High Potential & Essential Employment for the year 2017/18 had been unable to sustain his good performance allegedly since 2020.

[85] This court is also of the views that the claimant was denied of the opportunity to improve. This is evident when COW-2 confirmed during cross-examination that the performance review was conducted on the claimant on 09.06.2022 and on the next day itself i.e. 10.06.2022 the claimant was issued a Show Cause Letter.

[86] There were unresolved issues in particular the claimant was pressured to resign and when he refused to do so, the PIP was set in by the company. These irregularities invariably point to the conclusion, that the dismissal was without just cause or excuse and inequitable that warrants intervention of this court.

DECISION

[87] In the upshot, upon scrutinizing the facts and circumstances of the case and the evidence adduced in its entirety and having considered the Written Submissions filed by both parties, it is this Court's findings that the Company had failed to prove dismissal with just cause or excuse on the ground of poor performance, misconduct and insubordination on the balance of probabilities. In arriving at the above decision, the Court had taken into account the totality of evidence, bearing in mind Section 30(5) of the IRA 1967 by which virtue this Court shall act according to equity, good conscience and the substantial merit of the case without regard to technicalities and legal form.

REMEDIES

a) Reinstatement

[88] Having ruled against the Claimant's dismissal the Court shall now consider whether the Claimant is entitled for a reinstatement to his former position without any loss of seniority, wages or benefits, from the date of dismissal to the date of reinstatement. This Court agrees that it would be inappropriate in the circumstances to order a reinstatement, given the Claimant's position that he has been pressured by his superior to resign. In such a case, monetary compensation in lieu of reinstatement would be more appropriate.

[89] In **Dr James Alfred (Sabah) v Koperasi Serbaguna Sanya Bhd (Sabah) & Anor [2001] 3 CLJ 541**, the Federal Court held that:

> *"In our view, it is in line with equity and good conscience that the Industrial Court, in assessing quantum of backwages, should take into account the fact, if established by evidence or admitted, that the workman has been gainfully employed elsewhere after his dismissal. Failure to do so constitutes a jurisdictional error of law. Certiorari will therefore lie to rectify it. Of course, taking into account of such employment after dismissal does not necessarily mean that the Industrial Court has to conduct a mathematical exercise in deduction.* ***What is important is that the Industrial Court, in the exercise of its***

discretion in assessing the quantum of backwages, should take into account all relevant matters including the fact, where it exists, that the workman has been gainfully employed elsewhere after his dismissal. This discretion is in the nature of a decision- making process".

[90] It must be emphasized that the quantum of Compensation to be awarded is one of discretionary as enunciated in **Hotel Jayapuri Bhd V National Union of Hotel, Bar & Restaurant Workers & Anor [1979] 1 LNS 32.** In assessing the amount to be awarded as compensation in lieu of reinstatement, the completed years of service shall be taken into consideration.

b) Backwages

[91] In determining the quantum for backwages that is discretionary in nature, this Court may award not exceeding the maximum of 24 months last drawn salary; regards shall have to the provision of Clause 1 of the Second Schedule in *[Factors For Consideration In Making An Award in Relation To A Reference Under Sub Section 20(3)]* of Section 30(6A) of the IRA 1967 which provides:

"1. In the event backwages are to be given, such backwages shall not exceed twentyfour months

backwages from the date of dismissal based on the latest drawn salary of the person who has been dismissed without just cause or excuse"

[92] Having considered the facts and circumstances of the case, this Court awards backwages for **fifteen (15) months** to multiply with the Claimant's last drawn salary of **RM6,836.00** considering the length of service that the claimant had with the Company since 16.03.2010 until being terminated on 29.07.2022. As there was evidence of post dismissal earnings, it would be proper to deduct a percentage of the earnings against the awarded backwages pursuant to Clause 3 of the Second Schedule of Section 30(6A) of the Industrial Relation Act 1967.

DEDUCTIONS AGAINST BACKWAGES

a. Post Dismissal Earnings

[93] The Claimant in his evidence stated that he managed to secure new employment in Singapore in May 2024 with salary of SD2230. Prior to May 2024; he made his earning by working part time by drawing the tool parts on a commission basis. Claimant in his evidence stated that the commission he received doing part times are not

fixed, around RM70.00 to RM80.00 per job.

[94] On average; the claimant earned around RM2,000.00 per month; which means that he would have earned at least RM30,000.00 for a period of 15 months post dismissal. This court is of the views that a deduction of 10% equivalent to RM3,000.00 would be just and proper in the circumstances. This court makes no deduction for the claimant's earnings that he earns in Singapore.

b. <u>Contributory Misconduct</u>

[95] In addition, this court is of the considered views that it is equitable to order a deduction for contributory misconduct pursuant to clause 5 of the Second Schedule of section 30 (6A) of the Industrial Relations Act 1957; and for the purpose of which, a deduction of 30% from the awarded backwages would be just and proper in the circumstances.

CONCLUSION

[96] In conclusion, this Court Awards in favour of the Claimant as follows:

a)	**Compensation in Lieu of Reinstatement:**	
	RM6,836.00 x 12 months	**RM 82,032.00**
b)	**Backwages:**	
	RM6,836.00 x 15 months	RM102,540.00
	Less deductions	
	Contributory Misconduct (30%)	RM 30,762.00
	Post dismissal	RM 3,000.00
	TOTAL	**RM 68,778.00**
	GRAND TOTAL	**RM150,810.00**

[97] At the risk of repetition, this Court had taken into account the totality of the evidence adduced by both parties in its entirety and having borne in mind Section 30(5) of the IRA 1967 by which virtue this Court shall act according to equity, good conscience and the substantial merit of the case without regard to technicalities and legal form.

[98] The amount totalling **RM150,810.00** as awarded above less statutory deduction (if any), together with interest at the rate of 8% per annum, the interest to be calculated commencing on the 31st.

day from the date of the making of the award until the day the award was satisfied pursuant to section 30(1A) of the Industrial Relations Act 1967 shall be paid by the Company to the Claimant through the firm of the Claimant's solicitors within thirty (30) days from the date of this Award. Hence, the interest shall not be accrued if the award was fully satisfied within thirty (30) days from the date of the making of this award.

HANDED DOWN AND DATED THIS 16TH. DECEMBER 2025

-Signed-

(SYED NOH BIN SAID NAZIR @ SYED NADZIR)

CHAIRMAN

INDUSTRIAL COURT OF MALAYSIA

KUALA LUMPUR